

25SMCV04847 25SMCV04847

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV04847 Hearing Date: July 18, 2026 Dept: N

TENTATIVE RULING

Plaintiff Fernando Saenz's Motion to Compel Responses to Plaintiff's Form Interrogatories is GRANTED. Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon, shall serve code-compliant responses to Plaintiff Fernando Saenz's Form Interrogatories, Set One, without objections, within thirty (30) days of entry of this order.

Plaintiff Fernando Saenz's Motion to Compel Responses to Plaintiff's Special Interrogatories is GRANTED. Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon, shall serve code-compliant responses to Plaintiff Fernando Saenz's Special Interrogatories, Set One, without objections, within thirty (30) days of entry of this order.

Plaintiff Fernando Saenz's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,250, payable by Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon to Plaintiff Fernando Saenz and Plaintiff's counsel within thirty (30) days of entry of this order.

Plaintiff Fernando Saenz to give notice.

REASONING

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subds. (b), (c).) Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc., § 2030.290, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. (Ibid.) There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (See Code Civ. Proc., § 2030.290.) Where the motion seeks only a response to the interrogatories, no showing of "good cause" is required. (Contra Code Civ. Proc., § 2030.300, subd. (b)(1) [good cause requirement for motion to compel further responses].) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.)

Plaintiff Fernando Saenz ("Plaintiff") served Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon ("Defendant") with his Form Interrogatories and Special Interrogatories, Set One, on February 10, 2026. (Mots., Arcos Decls. ¶ 7.) Responses were due on or before March 17, 2026, and defense counsel also sent Plaintiff a letter to request her responses by May 18, 2026. (Mots., Arcos Decls. ¶¶ 8-9.) To date, no responses have been received. (Mots., Arcos Decls. ¶ 9.)

Accordingly, Plaintiff Fernando Saenz's Motion to Compel Responses to Plaintiff's Form Interrogatories is GRANTED, and Plaintiff Fernando Saenz's Motion to Compel Responses to Plaintiff's Special Interrogatories is GRANTED. Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon, shall serve code-compliant responses to Plaintiff Fernando Saenz's Form Interrogatories and Special Interrogatories, Set One, without objections, within thirty (30) days of entry of this order.

If a motion to compel responses to interrogatories is filed, the Court shall impose a monetary sanction against the losing party "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c).) Further, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Plaintiff requests \$1,750 in monetary sanctions for each motion. The Court finds that monetary sanctions are proper, but the Court reduces the amount to \$1,250, representing two hours spent preparing each motion and one hour spent appearing at the hearing on the motion, totaling five hours at the rate of \$250 per hour. Thus, Plaintiff Fernando Saenz's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,250, payable by Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon to Plaintiff Fernando Saenz and Plaintiff's counsel within thirty (30) days of entry of this order.